

SOLVED PRACTICE WORKBOOK

High Court and Subordinate Courts - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

High Court and Subordinate Courts	
01. ONE INTEGRATED JUDICIARY Single Court for the largest jurisdiction and which is neutral	02. HISTORICAL AND CONSTITUTIONAL LOCATION Article 213 states that there shall be High Courts for each state
03. COMPOSITION AND SANCTIONING STRENGTH Sanctioned strength varies according to institutional decisions and	04. APPOINTMENT OF HIGH COURT JUDGES Current collegium practice is judicially developed rather than written
05. QUALIFICATIONS "Exceptional talent" is not a High Court eligibility issue	06. OATH, TENURE AND RETIREMENT Designation is addressed to the President
07. REMOVAL AND INDEPENDENCE ASSAULTS Removal can only be by President, Chief Justice or High Court Chief	08. TRANSFER OF JUDGES Consent of a High Court judge under Article 222, the judge
09. ACTING, ADDITIONAL AND RETIRED JUDGES A retired judge under Article 228A is not formally treated as a	10. COURT OF RECORD AND CONTEMPT Contempt powers administration of justice, not judicial remedy
11. JURISDICTION MASTER MAP The other "relationship" Court, and both powers identified original	12. ARTICLE 226: THE CITIZEN'S WIDE CONSTITUTIONAL REMEDY Article 226: the citizen's wide constitutional remedy and a half a
13. THE FIVE WRITS Habeas corpus writs are not subject to private person or	14. ALTERNATIVE REMEDY RULE The standard exceptions include self-investigation of fundamental rights
15. JUDICIAL REVIEW AS BASIC STRUCTURE Division of powers underlines under Article 226(2)(b) review	16. ARTICLE 227 SUPERINTENDENCE Habeas Corpus / Check both states and local judicial orders
17. ARTICLE 226 CONSTITUTIONAL WITHDRAWAL It contains qualitative constitutional interpretation in the High	18. APPELLATE AND ORIGINAL JURISDICTION A Sessions Court death sentence requires High Court confirmation
19. HIGH COURT BENCHES AND ACCESS Article 229 places requirement of High Court Officer addresses	20. SUBORDINATE JUDICIARY: CONSTITUTIONAL HIERARCHY Article 229: powers, the hierarchy, the hierarchy, the hierarchy, the hierarchy
21. APPOINTMENT OF DISTRICT JUDGES Appoint and remove District Judges require approval of both states	22. RECRUITMENT BELOW DISTRICT JUDGE All state judges recruitment is done at state government, requires
23. ARTICLE 231 CONTROL State of West Bengal's Supreme Bench Rights confirms that Article	24. DISTRICT COURT HIERARCHY Article 230 defines "District Judge" broadly to include magistrates
25. ADMINISTRATIVE AND JUDICIAL RESPONSIBILITIES Article 231 defines judicial power through, rightly	26. LEGAL AID UNDER ARTICLE 23A The Legal Services Authorities Act, 1987 creates the constitutional
27. LOK ADALATS AND PERMANENT LOK ADALATS Non-compulsory criminal offences cannot be settled through Lok	28. LOK ADALAT VERSUS ARBITRATION Lok Adalat uses an arbitrary constitution and arbitrators, whereas
29. FAMILY COURTS AND GRAM NYAYALAYAS Family Courts operate procedures for family disputes, while Nyaya	30. ALL INDIA JUDICIAL SERVICE All court constitutionally recruit prior before district judge
31. VACANCY AND PENDING PROBLEM Problems is conducted by meeting state volume, statistics	32. SCOUTS PHASE II In addition to include judicial magistrates, judicial magistrates, judicial
33. NATIONAL JUDICIAL DATA GRID AND DATA GOVERNANCE Data governance strategy for state building, technology and	34. GOVERNMENT LITIGATION AND CASE MANAGEMENT State law system, which requires litigation policy, management
35. JUDICIAL INDEPENDENCE AND ACCOUNTABILITY Reserve power from the power and power, and spend power	36. ARTICLES 214-217 BAPD MAP Article 214: broadly in terms of fundamental rights

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Polity 21 - High Court and Subordinate Courts - Complete Topic Package

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Number of High Courts

India currently has:

A. 25 High Courts, some common to multiple States/UTs. B. 28 High Courts. C. one High Court for every State and UT. D. one High Court for each judicial district.

Answer: A.

Explanation: [CURRENT] Article 231 permits common High Courts.

OM2. Court of record

Which Article makes every High Court a court of record?

A. 226. B. 215. C. 216. D. 214.

Answer: B.

Explanation: [FACT] Article 215 includes contempt power.

OM3. Appointment

High Court judges are formally appointed by:

A. Governor. B. CJI. C. President. D. Chief Minister.

Answer: C.

Explanation: [FACT] Article 217 provides presidential appointment.

OM4. Qualification

Consider the following routes for appointment as a High Court judge:

1. Ten years in a judicial office in India.
2. Ten years as an advocate of one or more High Courts in succession.
3. Recognition as a distinguished jurist by the President.

Which are constitutional qualification routes?

A. 2 and 3 only. B. 1, 2 and 3. C. 1 only. D. 1 and 2 only.

Answer: D.

Explanation: [FACT] Article 217 includes citizenship plus routes 1 or 2; distinguished jurist is confined to Supreme Court eligibility.

OM5. Retirement

A High Court judge ordinarily retires at:

A. 62. B. 60. C. 65. D. 68.

Answer: A.

Explanation: [FACT] Supreme Court retirement is 65.

OM6. Oath

High Court judge oath is before:

A. President only. B. Governor or authorised person. C. State Speaker. D. CJI.

Answer: B.

Explanation: [FACT] Article 219 controls.

OM7. Transfer

Consider the following statements on Article 222 transfer:

1. The President formally transfers a High Court judge after consulting the CJI.
2. The judge's consent is an express constitutional prerequisite.
3. Current procedure uses consultation with four senior-most Supreme Court judges and both affected Chief Justices.

Which are correct?

A. 2 and 3 only. B. 1, 2 and 3. C. 1 and 3 only. D. 1 only.

Answer: C.

Explanation: [FACT] Consent is not constitutionally required, but full institutional consultation and public interest constrain transfer.

OM8. Acting Chief Justice

The relevant provision is:

A. Article 225. B. Article 224A. C. Article 231. D. Article 223.

Answer: D.

Explanation: [FACT] Article 223 covers Acting Chief Justice.

OM9. Writ scope

Article 226 permits writs for:

A. Fundamental Rights and other legal purposes. B. criminal appeals only. C. Union disputes only. D. Fundamental Rights only.

Answer: A.

Explanation: [FACT] This makes Article 226 wider in purpose than Article 32.

OM10. Territorial cause of action

Consider the following statements under Article 226:

1. A High Court may act where the cause of action arises wholly or partly within its territory even if the respondent is located outside.
2. A qualifying application to vacate an ex parte interim order triggers Article 226(3)'s two-week disposal safeguard.
3. The petitioner's residence alone creates territorial jurisdiction.

Which are correct?

A. 1 only. B. 1 and 2 only. C. 1, 2 and 3. D. 2 and 3 only.

Answer: B.

Explanation: [FACT] Cause of action, not residence alone, supplies the territorial connection; clause (3) protects the unheard party against prolonged ex parte restraint.

OM11. Detention

The writ testing unlawful detention is:

A. certiorari. B. quo warranto. C. habeas corpus. D. mandamus.

Answer: C.

Explanation: [FACT] It may run against public or private detention.

OM12. Public office

The writ challenging unlawful occupation of public office is:

A. habeas corpus. B. prohibition. C. mandamus. D. quo warranto.

Answer: D.

Explanation: [FACT] It tests authority to hold public office.

OM13. Mandamus

Mandamus ordinarily:

A. commands performance of a public/legal duty. B. quashes a completed order. C. stops illegal detention. D. transfers a judge.

Answer: A.

Explanation: [FACT] A legal duty must exist.

OM14. Prohibition

Prohibition generally:

A. awards compensation. B. stops a lower forum before completion for jurisdictional error. C. removes a public officer. D. reviews a completed conviction on merits.

Answer: B.

Explanation: [FACT] Certiorari ordinarily quashes after the order.

OM15. Certiorari

Certiorari commonly:

A. commands legislation. B. appoints a tribunal. C. quashes a jurisdictionally defective completed order. D. releases every prisoner.

Answer: C.

Explanation: [FACT] It is corrective rather than preventive.

OM16. Alternative remedy

A statute provides an appeal, but the challenged order was passed without jurisdiction and without hearing the affected person. The best statement is:

A. Only Article 32 can be used. B. Article 226 jurisdiction is constitutionally extinguished. C. The High Court must decide the statutory appeal itself. D. The High Court may still exercise writ discretion despite the alternative remedy.

Answer: D.

Explanation: [FACT] Alternative remedy is self-restraint, with recognised exceptions including want of jurisdiction and natural-justice failure.

OM17. Basic Structure

Which formulation most accurately states *L. Chandra Kumar*?

A. Articles 226/227 and 32 review are Basic Structure; Articles 323A/323B tribunal decisions remain subject to High Court scrutiny. B. Parliament may exclude all High Court review by ordinary law. C. Every tribunal was abolished. D. High Courts became routine merits-appellate forums over tribunals.

Answer: A.

Explanation: [FACT] Tribunals supplement adjudication; they cannot wholly substitute the constitutional review layer.

OM18. Superintendence

Article 227 concerns:

A. presidential election. B. High Court superintendence over territorial courts and tribunals. C. State finance. D. judicial appointments only.

Answer: B.

Explanation: [FACT] Armed-Forces-law forums are excluded.

OM19. Constitutional withdrawal

Article 228 permits withdrawal where a case involves:

A. any factual dispute. B. a minor procedural error. C. a substantial constitutional-interpretation question. D. a political disagreement.

Answer: C.

Explanation: [FACT] High Court may decide the question or whole case.

OM20. Common High Court

Common High Courts are authorised by:

A. Article 235. B. Article 226. C. Article 214 alone. D. Article 231.

Answer: D.

Explanation: [FACT] Article 231 accommodates multi-jurisdiction courts.

OM21. District judge appointment

After *Rejanish K.V. v. K. Deepa* (2025), which statement is correct for direct District-Judge recruitment?

A. Qualifying serving judicial officers may compete prospectively under the Court's combined-experience, age and application-date rules. B. Article 233 permits recruitment to posts below district judge through AIJS. C. *Dheeraj Mor* continues to exclude every serving judicial officer. D. The State PSC appoints district judges without High Court consultation.

Answer: A.

Explanation: [CURRENT] *Rejanish* prospectively overruled the categorical *Dheeraj Mor* exclusion while preserving Governor-High Court constitutional mechanics.

OM22. Lower judicial service

Consider the following:

1. Article 234 requires rules framed after consultation with the State PSC and High Court.
2. *All India Judges Association* (2025) restored prospective three-year Bar practice for future Civil Judge entry recruitment.
3. The 2025 decision converted Civil Judges into an operational AIJS.

Which are correct?

A. 1 only. B. 1 and 2 only. C. 1, 2 and 3. D. 2 and 3 only.

Answer: B.

Explanation: [FACT/CURRENT] The recruitment rule is judicially prescribed within State systems; no AIJS has been created.

OM23. Control

Match the provision with its function:

1. Article 228 - constitutional-question withdrawal.
2. Article 229 - High Court staff and administrative expenses.
3. Article 235 - control over district and subordinate courts.

Which option is correct?

A. 1 and 3 only. B. 1 only. C. 1, 2 and 3. D. 2 only.

Answer: C.

Explanation: [FACT] These are distinct judicial, institutional-administrative and subordinate-control powers.

OM24. District and Sessions Judge

Which is accurate?

A. District Judge handles only constitutional writs. B. Sessions Judge is below Magistrate. C. They are always different offices. D. The same officer is District Judge on civil side and Sessions Judge on criminal side.

Answer: D.

Explanation: [FACT] Functional designation changes with jurisdiction.

OM25. Death sentence

A Sessions Court death sentence:

A. requires High Court confirmation. B. is confirmed by Governor alone. C. becomes final immediately. D. requires Assembly approval.

Answer: A.

Explanation: [FACT] High Court confirmation is mandatory.

OM26. Legal aid

Article 39A concerns:

A. contempt. B. equal justice and free legal aid. C. judicial transfer. D. High Court retirement.

Answer: B.

Explanation: [FACT] The Legal Services Authorities Act implements the framework.

OM27. Ordinary Lok Adalat

If settlement fails, an ordinary Lok Adalat:

A. convicts the accused. B. transfers the judge. C. does not adjudicate the contested merits. D. imposes arbitration.

Answer: C.

Explanation: [FACT] Its core mode is consensual settlement.

OM28. Criminal scope

Lok Adalat may settle:

A. no civil dispute. B. every criminal offence. C. non-compoundable offences. D. compoundable criminal matters.

Answer: D.

Explanation: [FACT] Non-compoundable offences are excluded.

OM29. AIJS route

Which sequence correctly describes creation of an All India Judicial Service?

A. Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. B. Inter-State Council recommendation followed automatically by UPSC recruitment. C. Lok Sabha simple resolution followed by a presidential ordinance. D. CJI notification followed by State ratification.

Answer: A.

Explanation: [FACT] Article 312 supplies the route; Article 312(3) excludes posts below district judge.

OM30. AIJS floor

Article 312(3) means AIJS cannot include:

A. reserved categories. B. posts below district judge. C. district judges. D. judicial training.

Answer: B.

Explanation: [FACT] This is an express constitutional limit.

OM31. AIJS status

As of 28 August 2026:

A. AIJS has replaced State services. B. Article 235 is repealed. C. no AIJS is operational. D. UPSC recruits every civil judge.

Answer: C.

Explanation: [CURRENT] Recruitment remains under State constitutional structures.

OM32. eCourts Phase III

Which combination best reflects eCourts Phase III?

1. Four-year Central Sector Scheme approved in 2023.
2. Outlay of Rs 7,210 crore.
3. Digitisation, e-filing/e-payments and e-Sewa Kendras.
4. Replacement of judges by automated merits decisions.

A. 1, 3 and 4 only. B. 2 and 4 only. C. 1 and 2 only. D. 1, 2 and 3 only.

Answer: D.

Explanation: [CURRENT] Technology supports process and access; it does not replace reasoned human adjudication.

OM33. Digital justice

Which is a sound qualification?

A. e-filing cannot replace judges, staff and procedural fairness. B. case data should determine merits. C. virtual hearings remove digital exclusion. D. technology automatically eliminates pendency.

Answer: A.

Explanation: [ANALYSIS] Technology is an enabler, not adjudication itself.

OM34. Vacancy data

The Department of Justice statement dated 1 July 2026 records which High Court totals?

A. 1,122 sanctioned; 789 working; 333 vacant. B. 1,122 sanctioned; 781 working; 341 vacant. C. 1,122 sanctioned; 797 working; 325 vacant. D. 1,079 sanctioned; 781 working; 298 vacant.

Answer: B.

Explanation: [CURRENT] The figures are a dated snapshot and must not be reused as timeless data.

OM35. NJAC

Consider the following appointment controls:

1. Article 217 contains the collegium's present numerical composition.
2. The NJAC remains operative alongside the collegium.
3. Collegium primacy is judicially developed, while the constitutional text specifies presidential appointment and consultation.

Which is correct?

A. 2 and 3 only. B. 1 only. C. 3 only. D. 1 and 2 only.

Answer: C.

Explanation: [FACT] The NJAC was invalidated in 2015; collegium composition comes from the Judges Cases and procedure, not Article 217's text.

OM36. High Court role

The best description is:

A. only State executive adviser. B. only an appellate criminal court. C. tribunal without constitutional status. D. constitutional rights court, appellate court, supervisor and district-judiciary controller.

Answer: D.

Explanation: [ANALYSIS] Articles 215, 226-228 and 235 create the combined role.

Remedial MCQs - strict A -> A -> C -> D rotation

R1. Age trap

High Court retirement age:

A. 62. B. 60. C. no retirement. D. 65.

Answer: A.

Remedy: HC 62; SC 65.

R2. Oath trap

Oath is before:

A. Lok Sabha Speaker. B. Governor or authorised person. C. Chief Minister. D. President only.

Answer: B.

Remedy: Appointment by President, oath before Governor.

R3. Writ trap

Wider in purpose:

A. Article 136. B. Article 227. C. Article 226. D. Article 32.

Answer: C.

Remedy: Article 226 covers FRs plus other legal purposes.

R4. Prohibition-certiorari trap

The completed order is ordinarily quashed by:

A. habeas corpus. B. prohibition. C. mandamus. D. certiorari.

Answer: D.

Remedy: Prohibition prevents; certiorari corrects after order.

R5. Common-HC trap

The Constitution permits:

A. one High Court for multiple States/UTs. B. no UT jurisdiction. C. one High Court per district only. D. only 28 High Courts.

Answer: A.

Remedy: Article 231.

R6. District appointment trap

District judges:

A. are elected. B. are appointed by Governor in consultation with High Court. C. are appointed by High Court alone. D. are appointed by SPSC alone.

Answer: B.

Remedy: Article 233.

R7. Control trap

Posting and promotion control belongs to:

A. Governor personally. B. Parliament. C. High Court. D. State Cabinet.

Answer: C.

Remedy: Article 235.

R8. AIJS trap

AIJS:

A. already recruits all judges. B. includes every magistrate automatically. C. needs only an executive order. D. is not operational and cannot include posts below district judge.

Answer: D.

Remedy: Articles 312 and 312(3).

R9. Court-of-record trap

Article 215 includes:

A. contempt power. B. AIJS. C. writ territorial extension. D. district appointment.

Answer: A.

Remedy: Court of record and contempt.

R10. Article 227 trap

Article 227 is:

A. judicial removal. B. superintendence over courts/tribunals except Armed-Forces-law forums. C. only an appeal. D. a Fundamental Right.

Answer: B.

Remedy: Supervision is not routine factual reappraisal.

R11. Lok Adalat trap

Ordinary Lok Adalat may settle:

A. every criminal prosecution. B. constitutional removal proceedings. C. compoundable criminal and civil disputes by settlement. D. non-compoundable offences.

Answer: C.

Remedy: Consent and compoundability control.

R12. Technology trap

eCourts Phase III:

A. abolishes physical courts. B. decides cases algorithmically. C. replaces Article 226. D. digitises and improves process but does not replace adjudication.

Answer: D.

Remedy: Treat technology as capacity infrastructure.

PYQS AND ANSWER PRACTICE

Verified/cross-owned Mains PYQs

PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application

Verified neutral demand: Explain and distinguish Lok Adalats and Arbitration Tribunals, including whether they entertain civil and criminal matters. **10 marks | 150 words | Primary detailed owner: Lok Adalats/Administrative Tribunals; application here: subordinate justice**

Model answer

Claim: [FACT] Lok Adalat is a statutory settlement institution serving access to justice; arbitration is consensual private adjudication of arbitrable civil disputes.

Named evidence: The Legal Services Authorities Act, 1987 authorises Lok Adalats. They facilitate compromise, and an agreed award is final, binding and decree-like. Ordinary Lok Adalats cannot decide a contested case on merits if settlement fails. They may settle civil disputes and compoundable criminal offences, never non-compoundable offences.

Arbitration arises from an arbitration agreement under the Arbitration and Conciliation Act. The tribunal hears evidence and renders an arbitral award subject to limited statutory challenge. It handles arbitrable civil/commercial disputes, not

criminal prosecution.

Qualification: Permanent Lok Adalats for public-utility services have a distinct statutory conciliation-cum-adjudication role after failed settlement; they should not be equated with ordinary Lok Adalats.

Verdict: Both reduce ordinary-court burden, but Lok Adalat is access-oriented consensual justice, while arbitration is party-chosen adjudication.

Evidence chain: Article 39A -> Legal Services Authorities Act -> compromise/compoundable limit -> arbitration agreement -> civil-commercial field.

Why this earns marks: It distinguishes source, consent, subject matter, criminal limits and legal effect, then adds the Permanent Lok Adalat qualification within 150 words.

How to improve this answer: Compress the statutory comparison into a five-row mental matrix: source, consent, civil field, criminal field and legal effect; reserve one sentence for the Permanent Lok Adalat exception.

PYQ 2 - UPSC GS-II 2025, Q13 - appointments application

Verified neutral demand: Critically examine the collegium system of judicial appointments in India with comparison to the United States. **15 marks | 250 words | Primary owner: Polity 18; application here: High Court appointments**

Model answer

Claim: [FACT] India's collegium prioritises judicial independence through judicial primacy, while the United States uses presidential nomination and Senate confirmation, making political accountability more explicit.

Indian mechanism: Article 217 text provides presidential appointment after consultation with the CJI, Governor and High Court Chief Justice. The Judges Cases transformed consultation into collegium primacy. For High Court appointments, the originating Chief Justice consults two senior colleagues and the Supreme Court collegium of the CJI plus two senior-most judges considers the proposal. The NJAC was struck down in 2015.

Strengths: insulation from direct executive control, professional evaluation and protection of Basic Structure independence.

Weaknesses: opacity, limited published criteria, delays, uneven diversity and diffused responsibility.

US comparison: open nomination/confirmation increases public scrutiny but also permits ideological polarisation and partisan delay.

Reform: publish objective criteria and timelines, create a appointments secretariat, disclose reasoned outcomes consistent with privacy, broaden the candidate pool and make executive objections timely.

Verdict: India should reform, not politically capture, the collegium. Independence requires judicial primacy; legitimacy requires transparent, timely and diverse selection.

Evidence chain: Article 217 -> Judges Cases -> HC and SC collegium stages -> NJAC case -> US nomination-confirmation -> targeted reform.

Routed Prelims demands - provenance without invented answer letters

Why this earns marks: It anchors both systems, weighs independence against accountability, and proposes reforms that answer the comparative directive rather than merely describing the collegium.

How to improve this answer: Use three explicit comparison axes-appointing actors, transparency and politicisation-then compress reforms to criteria, timelines and a secretariat so the 250-word conclusion remains balanced.

Prelims route 1 - 2019 GS-I Q81 - cross-owned

Verified neutral demand: High Court jurisdiction and Supreme Court review powers.

Doctrinal solution

- [FACT] Article 226 covers Fundamental Rights and other legal purposes.
- [FACT] Article 32 directly enforces Fundamental Rights.
- [FACT] Supreme Court appellate/review authority does not erase High Court constitutional jurisdiction.
- [FACT] *L. Chandra Kumar* protects Articles 226/227 review as Basic Structure.

Elimination rule: Reject any proposition that tribunalisation or Supreme Court appellate authority wholly excludes High Court review.

Prelims route 2 - 2021 GS-I Q88 - cross-owned

Verified neutral demand: Retired Supreme Court judges and High Court powers.

Doctrinal solution

- [FACT] Article 224A concerns retired High Court judges requested to sit in a High Court.
- [FACT] Article 128 separately concerns retired Supreme Court judges sitting in the Supreme Court.
- [FACT] A High Court's Article 226/227 powers remain institutionally distinct.

Elimination rule: Do not transfer Article 128 arrangements to Article 224A or treat a recalled retiree as a permanent judge.

Original solved Mains practice

M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words)

Model answer

Claim: [FACT] Article 226 makes the High Court the locally accessible guardian of both Fundamental Rights and ordinary legal rights.

Named evidence: Unlike Article 32, it authorises writs for Fundamental Rights "and any other purpose." Article 226(2) connects jurisdiction to cause of action. *L. Chandra Kumar* protects Articles 226/227 review as Basic Structure and keeps tribunal decisions under High Court scrutiny.

Analysis: Citizens can challenge detention, jurisdictional error, public-duty failure and unlawful office without first converting every grievance into a Supreme Court case. Local access and broad purpose make the High Court the working constitutional court.

Qualification: [LIMIT] Relief is discretionary; adequate alternative remedies ordinarily matter, and territorial limits remain.

Verdict: Article 32 is the guaranteed national remedy for Fundamental Rights; Article 226 is the broader everyday rule-of-law jurisdiction.

Why this earns marks: It links the quoted proposition to wider-purpose writs, local territorial access, tribunal review and the discretion limit.

How to improve this answer: In the exam, use one citizen-facing example such as unlawful detention or refusal of a statutory duty, then state the alternative-remedy qualification before the verdict.

M2. Compare Articles 32 and 226. (10 marks, 150 words)

Model answer

Claim: [FACT] Both enforce constitutional legality through writs, but they differ in nature, purpose, discretion and territorial reach.

Comparison: Article 32 is itself a Fundamental Right, lies in the Supreme Court and primarily enforces Fundamental Rights across India. Article 226 is a High Court power covering Fundamental Rights and other legal purposes, making it wider substantively. A High Court may apply the alternative-remedy rule, while Article 32 carries stronger remedial entitlement. Article 226 remains territorially linked, including cause-of-action jurisdiction.

Common control: *L. Chandra Kumar* places review under Articles 32 and 226/227 within Basic Structure.

Verdict: Article 32 guarantees the constitutional door; Article 226 places a wider door near the citizen. They are complementary, not hierarchical substitutes.

Why this earns marks: It compares nature, purpose, territorial reach and discretion while preserving their common Basic-Structure role.

How to improve this answer: Present a compact four-row comparison and avoid saying Article 226 is simply wider; write "wider in purpose, territorially bounded" in both body and conclusion.

M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words)

Model answer

Claim: [FACT] Article 227 protects adjudicative legality through supervision, while Article 235 protects institutional independence through administrative control.

Mechanism: Article 227 gives High Courts judicial and administrative superintendence over territorial courts and tribunals, excluding Armed-Forces-law forums. It corrects grave jurisdictional and procedural failure without becoming a routine appeal. Article 235 vests posting, promotion, leave and disciplinary control over district and subordinate courts in the High Court.

Supporting design: Article 233 requires Governor-High Court consultation for district judges; Article 234 adds State PSC consultation for lower recruitment. Article 228 lets the High Court withdraw substantial constitutional-interpretation questions.

Analysis: Trial judges frequently decide cases involving State authorities. Executive control over their careers would threaten impartiality; High Court control separates administration from litigant government.

Qualification: Recruitment, finance and infrastructure remain shared with the State, while High Court control itself must follow law and natural justice.

Verdict: Articles 227 and 235 make the High Court the head, not merely the appellate apex, of an independent State judiciary.

Why this earns marks: It separates adjudicative supervision from service control and connects both to Articles 233, 234 and 228.

How to improve this answer: Add *Nripendra Nath Bagchi* for disciplinary control and *Radhey Shyam* for Article 227 restraint; compress shared State responsibilities into one qualified counterpoint.

M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words)

Model answer

Claim: [FACT] High Court independence is secured through tenure, appointments, protected conditions, difficult removal, transfer consultation and un-excludable review.

Evidence: Article 217 provides presidential appointment with constitutional consultation and retirement at 62. Removal requires the Article 124(4)-type special-majority process. Article 221 protects conditions; Article 222 requires CJI consultation for transfer. Article 215 supplies court-of-record authority, while Articles 226/227 review is Basic Structure under *L. Chandra Kumar*. Article 235 protects control over lower courts.

Weaknesses: Collegium opacity, appointment delay, perceived punitive transfers, post-retirement incentives, vacancies and infrastructure gaps may weaken practical independence and public confidence.

Counterpoint: Full public disclosure may harm candidate privacy, and executive participation is legitimate in a constitutional appointment.

Reform: transparent criteria, appointment calendars, reasoned institutional dialogue, diversity, permanent secretariat and predictable infrastructure funding.

Verdict: The constitutional design is strong against direct control; delivery now depends on making appointments and administration timely, transparent and capacity-rich.

Why this earns marks: It covers appointment, tenure, finance, transfer, review and district control, then tests practical weaknesses and realistic reforms.

How to improve this answer: Organise safeguards under personnel, finance, jurisdiction and administration; use the dated vacancy ratio only as evidence of implementation strain, not as a constitutional defect.

M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] AIJS can improve recruitment coordination and diversity, but only if it preserves the federal and High Court controls embedded in Articles 233-235.

Constitutional route: Article 312 requires a Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. Article 312(3) excludes posts below district judge.

Case for: national talent pool, uniform standards, predictable recruitment, professional training, diversity and faster district-judge vacancies.

Case against: local language and State law are essential; centralisation may weaken High Court control and State reservation/service structures; a national examination cannot fix infrastructure, staff or retention.

Design safeguards: district-judge entry only, strong High Court role in selection/probation/control, State language testing, local-law training, federal consultation, reservation and transparent cadre allocation.

Current status: [CURRENT] No AIJS is operational as of 28 August 2026.

Verdict: AIJS is desirable as a cooperative recruitment framework, not a central takeover. Uniform entry must coexist with local competence and Article 235 control.

Why this earns marks: It uses the exact Article 312 route, balances national standards against federal and linguistic concerns, and gives a conditional institutional design.

How to improve this answer: Mention that Article 312(3) excludes posts below district judge and distinguish AIJS from the separate 2025 three-year Bar-practice rule for Civil Judge recruitment.

M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Pendency emerges from the entire justice chain: legislation, policing, prosecution, government litigation, judicial vacancies, procedure, infrastructure and citizen access.

Causes: delayed appointments, weak registries, repeated adjournments, service failures, frequent State appeals, complex statutes, forensic/prosecution gaps and uneven lower-court capacity.

Consequences: undertrial hardship, commercial uncertainty, weak rights enforcement, higher legal cost and pressure for tribunals or executive settlement.

Constitutional frame: Articles 226/227 and 235 give High Courts rights and system-management roles, but States fund infrastructure and participate in recruitment under Articles 233-234. Article 39A makes access a public obligation.

Reforms: fill posts through calendars, strengthen staff and service, use age-based docket management, responsible government litigation, mediation/legal aid, eCourts safeguards and process simplification.

Qualification: [LIMIT] Disposal targets must not reward hurried justice or compromise independence.

Verdict: Courts must manage cases, but governments must stop creating avoidable litigation and fund the institutions that constitutional remedies require.

Why this earns marks: It maps executive litigation, staffing, service, procedure and judicial management into one causal diagnosis with safeguards against quota-driven disposal.

How to improve this answer: Open with the dated 1 July 2026 strength snapshot, then assign one executable reform each to Union, State, High Court and litigating departments.

M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)

Model answer

Claim: [CURRENT] eCourts Phase III is a major justice-infrastructure programme, not a replacement for judges or adjudication.

Design: Approved for 2023-2027 with Rs 7,210 crore, it seeks record digitisation, e-filing, e-payment, paperless workflows, e-Sewa Kendras, interoperable data and intelligent case management.

Benefits: reduces travel and filing cost, improves record retrieval, supports hybrid hearings, tracks case age, enables transparent listing and aids administrators in finding bottlenecks. District litigants and lawyers may gain most where physical distance is large.

Risks: digital divide, inaccessible interfaces, language exclusion, cyberattacks, privacy leakage, poor scanning quality, unreliable connectivity and algorithmic scheduling without reasons.

Safeguards: assisted access through e-Sewa Kendras, open standards, local languages, cyber audits, data minimisation, human control over listing/merits, physical alternatives and user training.

Qualification: [LIMIT] Faster digital movement cannot cure vacancies, weak legal aid or poor investigation.

Verdict: Phase III can convert courts from paper-bound institutions into accessible public infrastructure only if digital-by-default never becomes digital-only.

Why this earns marks: It states the official period and outlay, follows the user journey, and balances efficiency with inclusion, privacy and human adjudication.

How to improve this answer: Use a three-part test-access, efficiency and due process-and connect every risk to a safeguard; avoid listing technologies without explaining the justice outcome.

M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks, 250 words)

Model answer

Claim: [FACT] High Courts protect rights under Article 226 while supervising and administering the lower judiciary through Articles 227 and 235.

Strengths: The same constitutional court can identify systemic illegality, correct subordinate forums, ensure uniform precedent, control judicial careers and withdraw constitutional questions under Article 228. Integration protects district judges from the executive and connects administration to adjudicative standards.

Strains: Writ caseload, civil/criminal appeals, vacancies, registry management and disciplinary administration compete for time. Excessive Article 227 intervention may become a second appeal; weak administration can delay rights cases. Centralised High Court control may also overlook district-level management needs.

Reform: professional court administration, delegated registry authority with judicial oversight, data-based case flow without disposal quotas, regular inspections, district leadership training, timely appointments and separate administrative time.

Qualification: [LIMIT] Administrative professionalisation must not transfer decisional control to the executive or opaque technology vendors.

Verdict: The dual role is constitutionally valuable because it unifies rights and independence; it needs specialised management capacity so administration supports rather than consumes adjudication.